Transport Planning, Development & Streetworks Management
Wat Tyler West, 5th Floor,
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Transport Development Management

Memo

To: Planning Services
From: Transport Development Management
Date: 23rd December 2021

Application Number: S/AMEND/21/1881

Proposal: Non-material amendment to previous outline permission S/OUT/13/1555 regarding a variation to wording of conditions 9 (Character Area Design Code), 27 (Old Vicarage Lane/ A420), 41 (Surface Water - Full Site), 47 (Noise 1 Residential Amenity), 49 (Noise 3 - Mechanical Ventilation) and 61 (Broadband).

Location: Land North Of A420 Eastern Villages

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I refer to the above application.

Condition 9: Character Area Design Code

The proposed revised condition wording seeks to remove the Strategic Highways Infrastructure from requiring a Design Code. However, no specific definition is given for 'Strategic Highways Infrastructure'. The explanatory note states *'As the general design and location of the access points has been previously accepted by the Local Highways Authority, it is not considered that this needs to be covered by a Design Code'*. On the assumption that the proposal is seeking to increase the speed of delivery by removing the need for a Design Code for the access junctions that were approved at Outline, I suggest the condition is amended as follows:

A Design Code relating to each Character Area as defined in the Strategic Design Code, shall be submitted to and be approved in writing by the Local Planning Authority prior to the submission of the first reserved matters application (with the exception of details controlled by conditions 26 Thornhill Road Junction, 27 Old Vicarage Lane/A420 and 28 Eastern Access) for development parcels within that Character Area. Each Design Code shall be in accordance with the Strategic Design Code approved pursuant to condition 8 above and shall include detailed guidance for that specific Character Area in respect of:
a) The overall vision and character of the character area, and mix of uses;
b) How the character and identity of the development parcel will be established and strengthened through consideration of the public realm, streets, green infrastructure, retained and proposed planting, open spaces and play areas;
c) The form of the development, with reference to densities, block types, building types, building heights, the palette of materials, recycling and waste management, street furniture, inclusive design;
d) The sequencing, hierarchy, typology and treatments of all elements of the movement network (including a proposed route to the eastern boundary to facilitate a highway link into Nightingale Wood within the appropriate Character Area Code);
e) Principles of traffic management, parking provision (including for the 5no. 'car share scheme parking spaces' across the site) and servicing to all properties;

f) The form of movement connections from within housing parcels to connect to the wider pedestrian/cycle network identified on 'Indicative Access and Movement Plan' (LHL005/162 rev P) that provide connectivity to facilities and services; and
g) Any alterations to public transport routes to accommodate the defined phases of development within the site.
Each reserved matters application shall be accompanied by a checklist to demonstrate where the development accords with the relevant approved Character Area Design Code.
Reason: To ensure a holistic approach to co-ordinate and deliver high quality design in accordance with Policy DE1 and Policy NC3 of the Swindon Borough Local Plan 2026.

Condition 27: Old Vicarage Lane/A420

The proposed change appears to allow for construction of the South Marston area of development from Thornhill Road, but would still require improvements to the junction to be delivered before occupations were accessed from Old Vicarage Lane. The condition as worded could result in all 500 of the dwellings and associated infrastructure and works being constructed and accessed from Thornhill Road before any work at the Old Vicarage Lane junction with the A420 commences. Has sufficient network capacity been identified at the Gablecross and Thornhill Road junctions to permit this change to the condition?

If the proposal is seeking to remove the need for an interim junction improvement here, then a delivery programme, associated capacity impact assessments and alternative wording should be submitted.

Condition 41: Surface Water – Full Site

The proposal seeks to remove the S278 works (again no definition of what these works are given) from the requirements of a Surface Water Management Strategy. However, the access junction works (conditions 26 Thornhill Road Junction, 27 Old Vicarage Lane/A420 and 28 Eastern Access) will require drainage. It is usual that at least some of the drainage at site access junctions drains into the site. The site access drawings appear to exclude drainage details, therefore this proposal appears premature. However, our LLFA colleagues will be better placed to assess.

Condition 47: Noise 1 Residential Amenity

Please consult our Environmental Health colleagues.

Condition 49: Noise 3: Mechanical Ventilaion

Please consult our Environmental Health colleagues.

Condition 61: Broadband

No objection to the proposed changes.

Please note that the comments made here represent Officer opinion and cannot be seen to prejudice Swindon Borough Council's formal determination in relation to any application or planning matter.

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